

Amendment No. 1 to HB1853

White
Signature of Sponsor

AMEND Senate Bill No. 2423

House Bill No. 1853*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-6-2308, is amended by deleting the section and substituting instead the following:

(a) An LEA or public charter school shall not sell, offer for sale, or provide to students on school property through a school nutrition program any food or beverage item that contains one (1) or more of the following petroleum-based synthetic dyes:

(1) Allura Red AC, which is assigned Chemical Abstracts Service (CAS) registry number 25956-17-6, and is also known as Red 40;

(2) Erythrosine B, which is assigned CAS registry number 16423-68-0, and is also known as Food Red 14 or Red 3;

(3) Tartrazine, which is assigned CAS registry number 1934-21-0, and is also known as Food Yellow 4 or Yellow 5;

(4) Sunset Yellow FCF, which is assigned CAS registry number 2783-94-0, and is also known as Food Yellow 3 or Yellow 6;

(5) Erioglaucine disodium salt, which is assigned CAS registry number 3844-45-9, and is also known as Acid Blue 9 or Blue 1;

(6) Indigo carmine, which is assigned CAS registry number 860-22-0, and is also known as Acid Blue 74 or Blue 2; or

(7) Fast Green FCF, which is assigned CAS registry number 2353-45-9, and is also known as Food Green 3.

(b)

(1) Except as provided in subdivision (b)(2), subsection (a) applies to all food or beverage items sold, offered for sale, or provided to students on school property through a school nutrition program on or after August 1, 2027.

(2)

(A) If an LEA or public charter school contracts with a third party for the provision of food or beverage items for a school nutrition program, then subsection (a) applies to all contracts entered into, renewed, or amended by and between the LEA or public charter school and a third party for such purpose on or after August 1, 2027.

(B) This subsection (b) does not prohibit an LEA or public charter school from selling, offering for sale, or providing to students on school property through a school nutrition program any food or beverage item that contains one (1) or more of the petroleum-based synthetic dyes identified in subsection (a) if the food or beverage item was contracted for by the LEA or public charter school before August 1, 2027.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.